Mohammad Nowsad Noorbux v Police

2026 LPW 125

IN THE DISTRICT COURT OF LOWER PLAINES WILHEMS

PCN: 1988/26

In the matter of –

MOHAMMAD NOWSAD NOORBUX

Applicant

v/s

POLICE

Respondent

RULING

1. The Applicant stands provisionally charged with one Count of drug dealing, one Count of possession of dangerous drugs and one Count of money laundering. He has moved to be admitted to bail and was legally represented at the hearing.

2. The motion was objected to on two grounds, namely –

(a) risk of absconding; and

(b) risk of re-offending.

3. PS Roopnarain, the Enquiring Officer, deponed on behalf of the Respondent to sustain the grounds of objection. Thereafter, the Applicant made a brief statement from the dock.

4. I have taken into account the constitutional right to liberty, as enshrined in section 5(3) of the Constitution, the Bail Act and the rationale of bail as explained in the cases of **Maloupe (2000 SCJ 223)**, **Hurnam (2004 PRV 53)**, **Labonne (2005 SCJ 38)**, **Deelchand (2005 SCJ 215)** and **Marthe (2013 SCJ 386)**.

5. I have considered all the evidence adduced during the hearing and carried out the required balancing exercise.

6. Without going into the merits of the matter, I note that the nature of evidence against the Applicant appears to be strong inasmuch as he has admitted the seizure.

7. In relation to the 1st ground of objection, the Enquiring Officer has stated that, bearing in mind the value of the alleged drugs secured, the Applicant is likely to be

prosecuted for a serious offence before the Intermediate Court and he may be amenable to a severe penalty if convicted such that he may abscond if released on bail out of fear of that potentially severe penalty.

8. The Enquiring Officer confirmed, under cross-examination, that the Applicant works as driver. That being the case, it would appear that the Applicant is a person of limited means. Absconding from a jurisdiction or evading justice from within a jurisdiction requires some significant resources. Resources which the Applicant apparently lacks. I have also factored in that there is in force against the Applicant a Prohibition Order that will continue to remain in force should he be released on bail.

9. From the document produced, it would appear that the Applicant has, in the past, been convicted of drug-related offences twice. It would also appear that, at the time of his arrest, the Applicant was already on bail for a cognate offence of drug dealing. No evidence was ushered by the Enquiring Officer of any attempt by the Applicant to abscond or escape from custody in any of those instances and, in the absence of such evidence, I am led to the ineluctable conclusion that there has been no such attempt previously.

10. The Enquiring Officer could not enlighten the Court whether or not the Applicant has breached bail conditions in the past. This is very telling bearing in mind the fact that the Applicant has previously been convicted for drug-related offences and has been provisionally charged with a cognate offence. When these are considered altogether, it more likely than not that the Applicant will comply with bail conditions and surrender to the criminal justice system if ever he is admitted to bail.

11. Additionally, the Enquiring Officer confirmed, under cross-examination, that the Applicant has a fixed place of abode. This further dwindles the risk of absconding.

12. It would appear that the 1st ground of objection is premised solely on the seriousness of the offence with which the Applicant stands provisionally charged. However, the seriousness of an offence cannot be treated as an all but conclusive reason for refusing bail – **Hurnam (supra)**.

13. In the light of the above, I am of the opinion that the 1st ground of objection is a mere apprehension of the police and, as such, it fails.

14. In relation to the 2nd ground of objection, the Enquiring Officer explained that the Applicant may re-offend, if released on bail, inasmuch as the Applicant has, in the past, been convicted for drug-related offences and is currently on bail for a cognate offence and bearing in mind the lucrative nature of the drugs business.

15. It would appear, from the document produced, that the Applicant has been convicted –

(a) by the District Court of Lower Plaines Wilhems in 2015 for an offence of simple possession of dangerous drugs; and

(b) by the District Court of Lower Plaines Wilhems in 2026 for another offence of simple possession of dangerous drugs.

16. As highlighted earlier, it would also appear that, at the time of his arrest, the Applicant was on bail for a similar offence of drug dealing even though the nature of the dangerous drugs in that case appears to be different from those allegedly secured in the present matter.

17. Without prejudice to the principle of presumption of innocence *quoad* the Applicant in the matter for which he is currently on bail, the existence of that provisional charge, when considered together with the criminal record of the Applicant and the admission made by him in relation to the seizure in the present matter, gives a clear indication as to a propensity of the Applicant to commit drug-related offences.

18. As I have explained earlier, it would appear that the Applicant is a driver by profession. No other information was provided or solicited during the course of the hearing on that score and the financial means of the Applicant were also not canvassed. Being given the nature of the Applicant's employment, the possibility of earning easy money through the drugs business might prove a temptation too hard to resist for the Applicant.

19. If released, the Applicant would be on bail for two offences of drug dealing for which the sentence provided is quite significant. As rightly pointed out by the Enquiring Officer, the Applicant may be driven by the sentiment that he has nothing to lose in re-offending. This further exacerbates the risk.

20. Based on the above, I am of the opinion that this 2nd ground of objection has been well raised.

21. After anxiously pondering over it, I have reached the conclusion that there is no condition that I could impose that could reduce the risk substantiated to a negligible level, the more so as Learned Counsel offered no suggestion as to what stringent conditions could be imposed on the Applicant (that was not previously imposed in the other cases for which he has been convicted in the past) that could act as deterrent this time around.

22. This is because, even though surety and recognizance requirements might provide judicial supervision over the Applicant while reporting and curfew requirements might provide police supervision over him, yet such supervision would not be on a 24-hour basis thus rendering them nugatory whilst bearing in mind the circumstances of the present case and the ground of objection substantiated –

23. These conditions (surety, recognizance, reporting and curfew) are the primitive tools and techniques available as a monitoring mechanism in our present bail administration model – **Islam S. vs Senior District Magistrate, Grand Port District Court (2006 SCJ 282)**.

24. The Applicant may well furnish a substantial surety, he may well appear periodically in Court pursuant to entering into a recognizance, he may well report to a police station every day and may well abide by a curfew order, yet, taking into account the particular circumstances of the present case and the ground of objection substantiated, the Applicant may as well re-offend once he has left the Court or police station premises or outside curfew hours.

25. It is a matter of regret that despite the observations made by the Court in **Islam (supra)** as far back as in 2006 and despite amendments having been made to section 7 of the Bail Act, subsection (4) of that section is yet to be made operative and an electronic monitoring system is yet to be implemented in Mauritius. Such a system could have been an effective means of supervision on a 24-hour basis bearing in mind the circumstances of the present case and the ground of objection substantiated.

26. Whilst carrying out a balancing exercise, I have taken into account the nature of the provisional charges lodged against the Applicant, the quite substantial amount of alleged dangerous drugs involved (the bulk of which appears to be synthetic drugs), and the devastating and nefarious effect that synthetic drugs are having on our society. Having done so, I am of the opinion that the greater harm to society far outweighs the prejudice that may be caused to the Applicant.

27. The continued detention of the Applicant is, at this stage, still warranted.

28. I set aside the application.

H. H. A. Rohamally
Senior District Magistrate

14 October 2026